

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 08/05/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 2	25CV462646	Caprila One N.A. v. Trina Jennings	CLAIM OF EXEMPTION HEARING: CLAIM OF EXEMPTION The Court defers ruling on the debtor's Claim of Exemption and requests additional documentation pursuant to CCP §703.540. Within 30 days, the debtor shall file and serve documentation supporting the claimed monthly expenses, including but not limited to: • Proof of earnings; • Proof of rent or housing payments (such as a lease agreement, rent receipts, or bank statements reflecting rent payments); • Documentation supporting utilities, insurance, medical bills, etc. • Any other documentation reasonably demonstrating the claimed monthly expenses. Upon receipt and review of the documentation, the Court will determine whether the debtor's earnings are necessary for the support of the debtor and her dependents under CCP §706.050 and whether the claimed exemption should be sustained in whole or in part. The Hearing on Claim of Exemption will be continued to September 23, 2026 at 9:01 in Department 12. It is so ordered.
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Calendar Line 1**Case Name:** Northeast Securities v. Wenbin et al.**Case No.:** 23CV420300**PROPOSED INTERVENOR LIHUA SONG'S MOTION FOR LEAVE TO INTERVENE**

Proposed intervenor Lihua Song seeks leave to intervene pursuant to California Code of Civil Procedure section 387(d)(1)(B). Song is a judgment creditor of defendant Wenbin Que, holding a final federal judgment confirming an arbitration award. This action, filed by plaintiff Northeast Securities Co., Ltd., seeks to avoid allegedly fraudulent transfers under California's Uniform Voidable Transactions Act involving three California real properties. Song contends that disposition of this action may impair her ability to enforce her judgment.

On February 6, 2026, three days after Song filed this motion, defendant Xiaolan He filed a Chapter 7 bankruptcy petition. The parties (other than Song) agreed to stay this action pending resolution of the bankruptcy.

LEGAL STANDARD

Code of Civil Procedure section 387(d)(1)(B) provides for mandatory intervention when a nonparty claims an interest relating to the property or transaction that is the subject of the action, is so situated that disposition may impair or impede that person's ability to protect that interest, and the interest is not adequately represented by existing parties. Cal Code Civ Proc § 387.

To establish mandatory intervention, Song must demonstrate: (1) a timely application; (2) an interest relating to the property or transaction at issue; (3) that disposition may impair or impede her ability to protect that interest; and (4) that her interest is not adequately represented by existing parties.

For permissive intervention under section 387(d)(2), the court exercises discretion considering: (1) proper procedures; (2) direct and immediate interest; (3) whether intervention will enlarge the issues; and (4) whether reasons for intervention outweigh opposition.

ANALYSIS**A. Timeliness**

Timeliness is measured from when the proposed intervenor knew or should have known their interests were not being adequately protected, not from when they learned of the litigation. *Ziani Homeowners Assn. v. Brookfield Ziani LLC* (2015) 243 Cal.App.4th 274, 282.

Song's motion is untimely. Plaintiff filed this action on August 3, 2023, challenging the same April 2023 deeds of trust and California properties that Song subsequently targeted in her own federal attachment motion filed October 12, 2023. Song's federal motion discussed the